

25STCV22766 25STCV22766

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Case Number: 25STCV22766 Hearing Date: August 26, 2026 Dept: 509

Alexys Watson v. H & L Partners, et al.

MOTION TO VACATE [CODE CIV. PROC., § 663]

MOVING PARTY: Plaintiff Alexys Watson

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Alexys Watson (Plaintiff) alleges that defendant H&L Partners refused to consider Plaintiff's rental application when she informed Defendants that she was a participant of the Housing Choice Voucher Program. Plaintiff seeks damages and injunctive relief arising from causes of action for alleged unlawful housing discrimination in violation of California's Fair Employment and Housing Act, Government Code § 12955 et seq.; the Unruh Civil Rights Act, Civil Code § 51 et seq.; and Negligence, pursuant to Civil Code § 1714.

On May 8, 2026, this Court, on its own motion, bifurcated Plaintiff's prayer for injunctive relief for trial to be held June 5, 2026. However, as Plaintiff failed to appear in person on June 5, 2026, the trial was rescheduled for June 26, 2026.

On June 26, 2026, this Court conducted a bench trial on Plaintiff's prayer for injunctive relief.

On June 29, 2026, this Court issued its Informal Statement of Decision/Verdict re: Injunctive Relief denying Plaintiff's prayer for injunctive relief.

Plaintiff now moves to vacate the Informal Statement of Decision/Verdict re: Injunctive Relief pursuant to Code of Civil Procedure, section 663. No opposition was filed. [FN 1]

TENTATIVE RULING [FN 2]

Plaintiff's Motion to Vacate is DENIED WITH PREJUDICE.

DISCUSSION

Motion to Vacate

I. Legal Standard

Code of Civil Procedure, section 663, “allows an aggrieved party in a civil case to move the trial court to vacate its final judgment.” (Ryan v. Rosenfeld (2017) 3 Cal.5th 124, 127.) Section 663 provides that:

A judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment:

(1) Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected.

(2) A judgment or decree not consistent with or not supported by the special verdict.

(Code of Civ. Pro., § 663.)

II. Analysis

Plaintiff moves to vacate the Informal Statement of Decision/Verdict re: Injunctive Relief pursuant to Code of Civil Procedure, section 663. (Not. of Mot.) However, Plaintiff is not seeking the Court to issue a new judgment based upon the facts presented at the trial. Instead, Plaintiff is only requesting this Court vacate the judgment to leave the issue of injunctive relief undetermined. Such an order would be void.

Courts have long interpreted section 663 to require that when a court grants a motion to set aside and vacate the judgment, it must contemporaneously enter a new judgment. An order of vacation, without directing entry of a new judgment, is void. This interpretation makes sense as a court’s decision to grant the motion does not depend on any further trial of the facts or presentation of evidence. “ [A] motion to vacate lies only where a “different judgment” is compelled by the facts found....’ [Citation.] ‘In ruling on a motion to vacate the judgment the court cannot “ ‘in any way change any finding of fact.’” [Citation.]”

As Dolan explained over 100 years ago, “The code sections do not permit two motions to be made, nor two orders, one setting aside the judgment and another at a later day directing the entry of a different judgment. If on the motion it appears to the court that the findings require the judgment to be set aside, it must also appear what conclusions of law should be made on the facts, and the only order within the power of the court under these circumstances is one setting aside the judgment and directing as a part of the same order the entry of another judgment. It is from such an order only that an appeal is provided. An order merely setting aside the judgment and leaving the case undetermined is void and not merely erroneous. Any other rule might lead to interminable delays and the loss of important rights by litigants. On such a motion the court has no power to consider or determine any matter except what judgment should be entered upon the facts as found.

(Stop C-19, LLC v. Tooling Express, Inc. (2025) 111 Cal.App.5th 803, 811–812, internal citations omitted.)

Here, Plaintiff is requesting the Court to make three orders:

(1) The Motion is GRANTED

(2) The Informal Statement of Decision/Verdict re: Injunctive Relief, filed June 29, 2026, and the judgment thereon, are SET ASIDE and VACATED.

(3) Plaintiff's request for a preliminary injunction is deemed a determination that does not adjudicate the merits of Plaintiff's claim under Government Code section 12955(c), and does not foreclose Plaintiff's request for a permanent injunction, which is preserved for trial.

(7/13/26 [Proposed] Order.) (Italics added.)

However, none of those orders would contemporaneously enter a new judgment incorporating the factual determinations arising from the June 26, 2026, bench trial. Instead, Plaintiff requests an order only setting aside the judgment and explicitly leaving the issue of injunctive relief for a new trial thereby leaving the issue undetermined. (7/13/26 [Proposed] Order; see Mot. at p. 7:15-17, ["Judgment should be vacated and the matter restored to its proper posture—a determination on Plaintiff's request for a preliminary injunction that does not adjudicate the merits of her claim or foreclose permanent injunctive relief at trial."]) As a result, such an order would be void ab initio. (Stop C-19, LLC v. Tooling Express, Inc., supra, 111 Cal.App.5th at p. 811–812.) [FN 3]

Alternatively, even if somehow a proper motion to grant a new trial and/or vacate the prior "judgment" of the permanent injunction ruling, such a motion would still be DENIED. The simple fact remains that this Court's final interlocutory decision regarding the request for permanent injunction has been made. It has been denied. Period. As clearly explained in the Informal Statement of Decision, this was a trial on the permanent injunction – not a "hearing" on a motion for preliminary injunction. If Plaintiff is unhappy with that decision, she is free to seek the appropriate judicial review, by either extraordinary writ, or upon direct appeal once a final judgment has been entered in this case. She is not entitled to a "new trial" on the permanent injunction issue, nor is she otherwise entitled to have that ruling to be vacated or set aside.

Accordingly, Plaintiff's Motion to Vacate is DENIED WITH PREJUDICE.

IT IS SO ORDERED.

Dated: August 26, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Defendants' counsel of record was served via email on July 13, 2026. (See 7/13/26 Proof of Service.)

FN 2 - It is noted that on August 20, 2026, Plaintiff filed a "Request for Court Reporter by Party with Fee Waiver." That request is DENIED AS UNTIMELY, as it was not filed at least "10 calendar days" before the hearing date, and the Plaintiff had actual notice of the hearing date since July 13, 2026 – the date she filed and set this hearing. Be that as it may, if at the commencement of the hearing Plaintiff represents to this Court that she is unable to afford a private court reporter for this hearing, this Court will instruct the J.A. to turn on this Court's electronic recording device for this hearing, pursuant to the recent Cal. Supreme Court decision in Family Violence Appellate Project v. Superior Court of Contra Costa County et al. (S288176).

FN 3 - The Court declines to consider Plaintiff's remaining arguments as they are not dispositive to this instant motion and the Informal Statement of Decision/Verdict re: Injunctive Relief stands and speaks for itself. Alternatively, and simply put: Plaintiff's arguments are specious.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.